

COMMITTEE ON NATURAL RESOURCES, ENERGY & WATER
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2341
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 40-360.06, Arizona Revised Statutes, is amended
3 to read:

4 40-360.06. Factors to be considered in issuing a certificate
5 of environmental compatibility

6 A. The committee may approve or deny an application and may impose
7 reasonable conditions on the issuance of a certificate of environmental
8 compatibility and in so doing shall consider the following factors as a
9 basis for its action with respect to the suitability of either plant or
10 transmission line siting plans:

11 1. Existing plans of this state, A local government and private
12 entities for other developments at or in the vicinity of the proposed
13 site.

14 2. Fish, wildlife and plant life and associated forms of life on
15 which they are dependent.

16 3. Noise emission levels and interference with communication
17 signals.

18 4. The proposed availability of the site to the public for
19 recreational purposes, consistent with safety considerations and
20 regulations.

21 5. Existing scenic areas, historic sites and structures or
22 archaeological sites at or in the vicinity of the proposed site.

23 6. The total environment of the area.

24 7. The technical practicability of achieving a proposed objective
25 and the previous experience with equipment and methods available for
26 achieving a proposed objective.

27 8. The estimated cost of the facilities and site as proposed by the
28 applicant and the estimated cost of the facilities and site as recommended

1 by the committee, recognizing that any significant increase in costs
2 represents a potential increase in the cost of electric energy to the
3 customers or the applicant.

4 9. THE SPECULATIVENESS OF THE PROPOSED TRANSMISSION LINE OR PLANT
5 AS IDENTIFIED BY THE EXISTENCE OF KNOWN OFFTAKERS. FOR THE PURPOSES OF
6 THIS PARAGRAPH:

7 (a) "KNOWN OFFTAKERS" MEANS[.:

8 (i) FOR A PROPOSED TRANSMISSION LINE,] SPECIFIC, IDENTIFIED BUYERS
9 THAT HAVE ENTERED INTO LEGALLY BINDING, LONG-TERM CONTRACTS TO PURCHASE A
10 [SUBSTANTIAL] PORTION OF [A PROJECT'S FUTURE OUTPUT] [THE FUTURE OUTPUT OF
11 ANY ELECTRIC GENERATING UNIT THAT IS RELATED TO OR WILL BE INTERCONNECTED
12 WITH THE PROPOSED TRANSMISSION LINE.

13 (ii) FOR A PROPOSED PLANT, SPECIFIC, IDENTIFIED BUYERS THAT HAVE
14 ENTERED INTO LEGALLY BINDING, LONG-TERM CONTRACTS TO PURCHASE A PORTION OF
15 THE PLANT'S FUTURE OUTPUT].

16 (b) "SPECULATIVENESS" MEANS THE LEVEL OF RISK OR UNCERTAINTY THAT
17 IS ASSOCIATED WITH [A PROJECT'S] [THE PROPOSED TRANSMISSION LINE'S OR
18 PLANT'S] FINANCIAL SUCCESS.

19 [(c) IF THE APPLICANT FOR THE PROPOSED TRANSMISSION LINE OR PLANT
20 IS A PUBLIC SERVICE CORPORATION OR PUBLIC POWER ENTITY DOING BUSINESS IN
21 THIS STATE, THE PUBLIC SERVICE CORPORATION'S OR PUBLIC POWER ENTITY'S
22 CUSTOMERS SHALL SERVE AS THE EXISTENCE OF KNOWN OFFTAKERS, THE
23 IDENTIFICATION OF SPECIFIC BUYERS AND LEGALLY BINDING LONG-TERM CONTRACTS
24 ARE NOT REQUIRED AND THE PROPOSED TRANSMISSION LINE OR PLANT MAY NOT BE
25 DEEMED SPECULATIVE.]

26 ~~9.~~ 10. Any additional factors that require consideration under
27 applicable federal and state laws pertaining to any such site.

28 B. The committee shall give special consideration to the protection
29 of areas THAT ARE unique because of biological wealth or because they are
30 habitats for rare and endangered species.

31 C. Notwithstanding any other provision of this article, the
32 committee shall require in all certificates for facilities that the
33 applicant comply with all applicable nuclear radiation standards and air
34 and water pollution control standards and regulations, but shall not
35 require either of the following:

36 1. Compliance with performance standards other than those
37 established by the agency having primary jurisdiction over a particular
38 pollution source.

39 2. That a contractor, subcontractor, material supplier or other
40 person THAT IS engaged in the construction, maintenance, repair or
41 improvement of any project subject to approval of the commission
42 negotiate, execute or otherwise become a party to any project labor
43 agreement, neutrality agreement as defined in section 34-321,
44 apprenticeship program participation or contribution agreement or other
45 agreement with employees, employees' representatives or any labor
46 organization as a condition of or a factor in the commission's approval of
47 the project. This paragraph does not:

1 (a) Prohibit private parties from entering into individual
2 collective bargaining relationships.

3 (b) Regulate or interfere with activity **THAT IS** protected by law,
4 including the national labor relations act.

5 D. Any certificate **THAT IS** granted by the committee shall be
6 conditioned on compliance by the applicant with all applicable ordinances,
7 master plans and regulations of ~~the~~ **THIS** state, a county or an
8 incorporated city or town, except that the committee may grant a
9 certificate notwithstanding any such ordinance, master plan or regulation,
10 exclusive of franchises, if the committee finds as a fact that compliance
11 with such **AN** ordinance, master plan or regulation is unreasonably
12 restrictive and compliance therewith is not feasible in view of technology
13 available. ~~When~~ **IF** it becomes apparent to the chairman of the committee
14 or to the hearing officer that an issue exists with respect to whether
15 such an ordinance, master plan or regulation is unreasonably restrictive
16 and compliance therewith is not feasible in view of technology available,
17 the chairman or hearing officer shall promptly serve notice of such fact
18 by certified mail on the chief executive officer of the area of
19 jurisdiction affected and, notwithstanding any provision of this article
20 to the contrary, shall make such area of jurisdiction a party to the
21 proceedings on its request and shall give it an opportunity to respond on
22 such issue.

23 Enroll and engross to conform

24 Amend title to conform

And, as so amended, it do pass

GAIL GRIFFIN
CHAIRMAN

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